

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Moran	Team: Squad #6	CCRB Case #: 201905782	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/19/2019 3:22 AM	Location of Incident: Intersection of 86th Street and Shore Road	Precinct: 68	18 Mo. SOL 12/19/2020	EO SOL 8/5/2021	
Date/Time CV Reported Wed, 06/19/2019 4:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/02/2019 1:11 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Roder	25253	935610	068 PCT
2. POM Hassan Gheith	07404	938557	068 PCT
3. SGT Imad Beydoun	03953	950077	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Hassan Gheith	Force: Police Officer Hassan Gheith used physical force against § 87(2)(b)	
B.POM Michael Roder	Force: Police Officer Michael Roder used physical force against § 87(2)(b)	
C.SGT Imad Beydoun	Force: Sergeant Imad Beydoun used physical force against § 87(2)(b)	
D.SGT Imad Beydoun	Abuse: Sergeant Imad Beydoun searched the vehicle in which § 87(2)(b) was an occupant.	
E.SGT Imad Beydoun	Abuse: Sergeant Imad Beydoun frisked § 87(2)(b)	
F.POM Michael Roder	Abuse: Police Officer Michael Roder frisked § 87(2)(b)	
G.POM Michael Roder	Abuse: Police Officer Michael Roder searched § 87(2)(b)	
H.SGT Imad Beydoun	Discourtesy: Sgt. Imad Beydoun spoke discourteously to § 87(2)(b)	
I.POM Michael Roder	Abuse: Police Officer Michael Roder refused to provide his name to § 87(2)(b)	
J.POM Hassan Gheith	Abuse: Police Officer Hassan Gheith refused to provide his name to § 87(2)(b)	
K.SGT Imad Beydoun	Abuse: Sergeant Imad Beydoun refused to provide his name to § 87(2)(b)	
L.SGT Imad Beydoun	Abuse: Sergeant Imad Beydoun refused to provide his shield number to § 87(2)(b)	
M.POM Michael Roder	Abuse: Police Officer Michael Roder refused to provide his shield number to § 87(2)(b)	
N.POM Hassan Gheith	Abuse: Police Officer Hassan Gheith refused to provide his shield number to § 87(2)(b)	
§ 87(4-b) § 87(2)(g)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On June 19, 2019, § 87(2)(b) filed the following complaint with IAB under IA log number 2019-24813. On July 2, 2019 the CCRB received the complaint.

On June 19, 2019, at approximately 3:22 a.m. § 87(2)(b) parked in the vicinity of 86th Street and Shore Road in Brooklyn and smoked a tobacco cigarette when an unmarked vehicle drove past. § 87(2)(b) finished his cigarette, rolled up the windows, and went to sleep. When he woke, PO Hassan Gheith, PO Michael Roder, and Sgt. Imad Beydoun of the 68th Precinct, were at his vehicle and pulled him from inside (**Allegations A, B, and C, Force, § 87(2)(g)**). § 87(2)(b) was handcuffed. Sgt. Beydoun told § 87(2)(b) that he was stopped because they smelled marijuana. Sgt. Beydoun removed § 87(2)(b) cell phone from his vehicle (**Allegation D, Abuse of Authority, § 87(2)(g)**). Sgt. Beydoun frisked § 87(2)(b) (**Allegation E, Abuse of Authority, § 87(2)(g)**). PO Roder frisked and searched § 87(2)(b) (**Allegations F and G, Abuse of Authority, § 87(2)(g)**). PO Gheith brought § 87(2)(b) to the back of the police vehicle to stand with Sgt. Beydoun, where § 87(2)(b) observed PO Roder and PO Gheith search his vehicle and recover a marijuana grinder and wrappers (**within allegation D**). PO Roder issued § 87(2)(b) a summons for § 87(2)(b) (BR03). In conversation with § 87(2)(b) Sgt. Beydoun told him, “If we review the body-worn camera, you’re going to see how fucked up that was” (**Allegation H, Discourtesy, § 87(2)(b)**). PO Roder, PO Gheith, and Sgt. Beydoun allegedly refused to provide their names upon request (**Allegations I and J, Abuse of Authority, § 87(2)(g)** and **K, Abuse of Authority, § 87(2)(g)**). PO Roder, PO Gheith, and Sgt. Beydoun allegedly refused to provide their shield numbers (**Allegations L, M, and N, Abuse of Authority, § 87(2)(g)**).

§ 87(4-b) § 87(2)(g)

§ 87(2)(b) was issued a summons for § 87(2)(b) (BR03). Two BWC videos were obtained for this incident (BR01-02). § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Hassan Gheith used physical force against

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Michael Roder used physical force against

§ 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Imad Beydoun used physical force against

§ 87(2)(b)

At 30 seconds of the video media player of Sgt. Beydoun’s BWC, the officers asked § 87(2)(b) who he was waiting for and then repeatedly issued him commands to step out of the vehicle and to show his hands (BR01). At 48 seconds, PO Gheith leaned inside § 87(2)(b) vehicle and appeared to grab him. At 1:00 minute, PO Gheith pulled § 87(2)(b) out of the vehicle. At 46 seconds of the video media player of PO Roder’s BWC, Sgt. Beydoun appeared to reach in and grab § 87(2)(b) (BR02).

§ 87(2)(g)

§ 87(2)(b) stated that he was parked in the vicinity of 86th Street and Shore Road in Brooklyn (BR15). He admitted that he smoked a tobacco cigarette with his feet sticking out through an open driver's side window, during which time he observed an unmarked vehicle drive by him. He finished his cigarette, rolled up the windows and went to sleep. When he woke, Sgt. Beydoun pulled him from his vehicle and handcuffed him.

PO Roder testified that he, PO Gheith, and Sgt. Beydoun (formerly of the 68th Precinct) patrolled Shore Road focused on a condition of drug use and vehicle break-ins (BR16). PO Roder sat in the rear passenger's seat of the patrol vehicle which had one of the windows open. The officers drove past § 87(2)(b) vehicle and observed § 87(2)(b) foot out of the window as he smoked a marijuana cigarette. PO Roder smelled the strong odor of burning marijuana. The officers' vehicle was approximately a vehicle length away. PO Roder observed § 87(2)(b) smoke a lit cigarette with white wrapping. There was likely a conversation between PO Roder and his partners in which they mentioned that § 87(2)(b) was smoking marijuana. PO Gheith made a U-turn and approximately one to two minutes later, PO Roder observed the window of § 87(2)(b) vehicle, now closed, and § 87(2)(b) leaned back in the driver's seat. The officers approached § 87(2)(b) vehicle on the driver's side. Either PO Gheith or Sgt. Beydoun asked § 87(2)(b) to exit the vehicle at least five times. § 87(2)(b) refused. Either PO Gheith or Sgt. Beydoun grabbed § 87(2)(b) and removed him from the vehicle. PO Roder grabbed § 87(2)(b) shoulder and pulled him out of the vehicle.

Sgt. Beydoun's testimony is largely consistent with PO Roder's with the following exceptions (BR17). The second time they observed § 87(2)(b) in his vehicle, he appeared to be asleep or passed out inside the vehicle. An officer knocked on the door multiple times. The officers tried to alert § 87(2)(b) but did not remember what commands were issued. § 87(2)(b) did not respond. § 87(2)(b) appeared to regain consciousness when one of the officers opened the door. When they did so, § 87(2)(b) became irate, yelled and refused multiple orders to exit. The officers then grabbed § 87(2)(b) by his hand. § 87(2)(b) resisted their grab. The officers were eventually able to pull § 87(2)(b) out of the vehicle. He was handcuffed for their safety because § 87(2)(b) was combative.

PO Gheith's testimony was consistent with PO Roder and Sgt. Beydoun's (BR18) with the following exceptions. PO Gheith could not recall which officers grabbed § 87(2)(b) to pull him out of his vehicle or where on his arm. Additionally, § 87(2)(b) would not show his hands when requested and PO Gheith could not see what they were doing.

PO Roder's memo book entries noted that § 87(2)(b) smoked marijuana as they drove past and refused to exit the vehicle (BR14). PO Gheith's memo book entries were consistent with PO Roder's (BR14).

PO Roder prepared property voucher number § 87(2)(b) for marijuana packaged in a cigarette, and other paraphernalia (grinder) with residue. The marijuana field tested positive.

No TRIs were prepared for this incident.

Force may be used when it is reasonable to ensure the safety of a member of service or third person, or otherwise protect life, or when it reasonable to place a person in custody or to prevent escape from custody Patrol Guide 221-01 (BR14).

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Abuse of Authority: Sergeant Imad Beydoun searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (F) Abuse of Authority: Police Officer Michael Roder frisked § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Michael Roder searched § 87(2)(b)

It is undisputed that Sgt. Beydoun, PO Roder, and PO Gheith searched § 87(2)(b) vehicle and that PO Roder searched § 87(2)(b)

At the 1:22 minute time stamp of the video media player of PO Roder's BWC, PO Roder reached into one of § 87(2)(b) pockets and removed § 87(2)(b) identification (BR02). At 1:30 minutes Sgt. Beydoun reached into the driver's seat of § 87(2)(b) vehicle and removed a cell phone. At 3:35 minutes of the video media player of PO Roder's BWC, PO Roder reached into the driver's seat of the vehicle. He opened the center console and searched through the contents beginning at 3:43 minutes. At 4:46 minutes, he opened the passenger's door on the driver's side and looked around the rear of the vehicle. PO Roder was inside of § 87(2)(b) vehicle at 6:00 minutes. At 7:22 minutes, PO Gheith searched § 87(2)(b) vehicle. At 9:00 minutes, PO Roder found a grinder. At 9:11, PO Gheith looked around the driver's seat area. At 9:12 minutes, PO Roder was in the rear passenger's side of the black sedan and at 9:42 he entered the front passenger's seat area. While still inside the vehicle, PO Roder searched through a black pouch at 10:03 minutes. At 10:19 minutes, PO Roder turned over a box of cigarettes and shook it out. At 11:13 minutes, PO Roder went through the center console again. At 11:50 minutes, PO Roder was in the rear of § 87(2)(b)'s vehicle and looked at the floor and seats.

At 1:22 minutes of PO Beydoun's BWC he said, "Your vehicle smells like marijuana" (BR01). At 1:29 minutes, Sgt. Beydoun reached inside and removed a cell phone from § 87(2)(b) vehicle. At 25:12 minutes, Sgt. Beydoun asked PO Roder if he had the weed. PO Roder replied that he did.

PO Roder and PO Gheith searched § 87(2)(b) vehicle. PO Roder recovered a grinder used for marijuana and the paper in which marijuana was wrapped. § 87(2)(b) did not know if they contained marijuana. At some point during the stop, the officers told § 87(2)(b) they smelled marijuana when they passed. § 87(2)(b) denied smoking marijuana.

PO Roder testified that he frisked § 87(2)(b) because he failed to comply with the orders to step out of the vehicle and his furtive movements while inside the vehicle. But he did not remember where he frisked § 87(2)(b). PO Roder wanted to make sure § 87(2)(b) did not have any weapons on him. PO Roder did not observe any bulges on § 87(2)(b). Upon viewing 1:15 minutes through 1:26 minutes of his BWC camera footage, PO Roder stated he reached inside § 87(2)(b) pants pocket to retrieve his identification. PO Roder testified that he searched § 87(2)(b) vehicle to recover the marijuana cigarette he observed and any other illegal contraband. PO Roder did not know where inside the vehicle he or PO Gheith searched but he recovered a marijuana cigarette and a marijuana grinder, which he vouchered. PO Roder's BWC did not clearly depict him frisk § 87(2)(b).

Sgt. Beydoun testified that as they approached the driver's side of § 87(2)(b) vehicle, the smell of marijuana intensified. Sgt. Beydoun brought § 87(2)(b) to the back of his vehicle. There he explained that § 87(2)(b) was stopped because they smelled marijuana. PO Gheith and PO Roder searched § 87(2)(b) vehicle and PO Roder recovered marijuana inside the vehicle. § 87(2)(g)

§ 87(2)(g)

PO Gheith testified that he searched § 87(2)(b) vehicle because of the emanating smell of marijuana. They recovered a marijuana cigarette and marijuana grinder, but he did not remember which officer recovered the items.

PO Roder issued § 87(2)(b) summons number § 87(2)(b) for § 87(2)(b) (BR03).

The smell of marijuana smoke, with nothing more, can be sufficient to provide police officers with probable cause to search an automobile and its occupants, People v. Chestnut, 43 A.D.2d 260, 261 (1974) (BR05).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Abuse of Authority: Sergeant Imad Beydoun frisked § 87(2)(b)

§ 87(2)(b) stated that an officer matching Sgt. Beydoun's description frisked his chest, each side of his torso, all his pockets and the length of his legs. Sgt. Beydoun, entered all § 87(2)(b) pockets. § 87(2)(b) wore a hooded sweatshirt, with a front pocket, jeans with two pockets in the front on the left and right and two pockets in the back on the left and right. § 87(2)(b) wallet which was approximately the size of an Iphone 7 was in one of his pockets, but he did not remember which pocket.

Sgt. Beydoun testified that when the officers grabbed § 87(2)(b) from his vehicle he resisted. When the officers grabbed his left hand, he slid his right hand between the center console and the seat. Sgt. Beydoun suspected that there may have been weapons because § 87(2)(b) was not complying with orders, he would not show the officers his hands and he reached into the seat. Sgt. Beydoun did not remember if he observed any bulges on § 87(2)(b) Sgt. Beydoun denied frisking § 87(2)(b) and did not remember who frisked or searched § 87(2)(b)

The BWC did not depict an officer frisk § 87(2)(b) Although the video captured the time frame in which the frisk occurred, there were portions of the video in which the camera was obscured. Sgt. Beydoun is captured as the only officer wearing a baseball cap in the video.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation (H) Discourtesy: Sergeant Imad Beydoun spoke discourteously towards § 87(2)(b)

At 4:00 minutes of the video media player of Sgt. Beydoun's BWC, § 87(2)(b) said, "You know how fucked up this is?" (BR01) At 4:07 minutes, Sgt. Beydoun told § 87(2)(b) " If we review the body-worn camera, you're going to see how fucked up that was."

§ 87(2)(b) did not allege Sgt. Beydoun used profanity when speaking to him.

Upon viewing 4:00 minutes through 4:11 minutes of his BWC, Sgt. Beydoun confirmed he told § 87(2)(b) "If we review the body-worn camera, you will see how fucked up that was." Sgt. Beydoun stated his use of profanity was human error.

DAO-DCT Case number 2017-17005 states that the tribunal has held that profane remarks, made during stressful situations or while an officer is trying to get a chaotic situation under control, are not misconduct (BR06). The NYPD is committed to accomplishing its mission by treating every citizen with compassion, courtesy, professionalism and respect. Officers pledge to value human life, respect the dignity of each individual and render our services with courtesy and civility, **Patrol Guide Section 200-02** (BR11).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Allegation (I) Abuse of Authority: Police Officer Michael Roder refused to provide his name to § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Hassan Gheith refused to provide his name to § 87(2)(b)

It is undisputed that PO Roder and PO Gheith did not provide their own names to § 87(2)(b)

At 5:10 minutes of the video media player of Sgt. Beydoun's BWC, § 87(2)(b) stood at the back of his vehicle speaking to Sgt. Beydoun. § 87(2)(b) requested the officers' shield numbers (BR01). PO Gheith and PO Roder were in § 87(2)(b) vehicle at the time of his request. None of the officers provided their shield numbers. At 23:19 minutes, § 87(2)(b) asked for the officers' names and shield numbers. Sgt. Beydoun provided each officer's name, including his own and then Sgt. Beydoun repeated their names at 24:15 minutes. Each officer provided their own shield number.

§ 87(2)(b) testified that after the handcuffs were removed and he was issued a summons, he asked the officers for their names and shield numbers. He made this request to them as a group while they were within hearing distance. None of the officers provided their names or shield numbers.

PO Roder testified that he did not remember that § 87(2)(b) requested his name or shield number or those of Sgt. Beydoun or PO Gheith. PO Roder did not refuse to provide his name to § 87(2)(b) or hear PO Gheith refuse to provide his name. Upon viewing 23:14 minutes through 23:22 minutes of his BWC, PO Roder stated that he still did not remember § 87(2)(b) requesting his name and shield number but that based on the video footage, it appeared § 87(2)(b) spoke to Sgt. Beydoun.

Sgt. Beydoun testified that § 87(2)(b) requested each officer's name and shield number. Sgt. Beydoun, PO Gheith, and PO Roder each provided their name and shield number to § 87(2)(b) personally.

PO Gheith testified that he did not remember if § 87(2)(b) requested his name or shield number or those of PO Roder or Sgt. Beydoun. Upon reviewing 23:13 minutes to 23:20 minutes of Sgt. Beydoun's BWC, PO Gheith stated he still did not remember if § 87(2)(b) requested his name and shield number. PO Gheith did not know where he stood when § 87(2)(b) requested that information. PO Gheith did not remember if he provided his name and shield number.

When § 87(2)(b) requested the officers' names, he was in a conversation with Sgt. Beydoun. After Sgt. Beydoun provided his name and his partner's names, § 87(2)(b) did not ask for their names again or make requests to PO Gheith or PO Roder individually. Immediately after Sgt. Beydoun provided their names, § 87(2)(b) requested the officer's shield numbers a second time which they each immediately provided.

§ 87(2)(g)

Allegation (K) Abuse of Authority: Sergeant Imad Beydoun refused to provide his name to

§ 87(2)(b)

Allegation (L) Abuse of Authority: Sergeant Imad Beydoun refuse to provide his shield number to § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Michael Roder refused to provide his shield number to § 87(2)(b)

Allegation (N) Abuse of Authority: Police Officer Hassan Gheith refused to provide his shield number to § 87(2)(b)

It is undisputed that PO Gheith, PO Roder, and Sgt. Beydoun provided their shield numbers to § 87(2)(b) and that Sgt. Beydoun provided his own name.

At 5:10 minutes of the video media player of Sgt. Beydoun's BWC, § 87(2)(b) stood at the back of his vehicle with Sgt. Beydoun. § 87(2)(b) requested the officers' shield numbers (BR01). PO Gheith and PO Roder were in § 87(2)(b) vehicle at the time of his request. They did not provide them. At 23:19 minutes, § 87(2)(b) asked for the officers' shield numbers again. Sgt. Beydoun provided his name and each officer provided their own shield number.

§ 87(2)(b) testified that after the handcuffs were removed and he was issued a summons, he asked the officers, as a group, for their shield numbers while they were within hearing distance. None of the officers provided their shield numbers.

PO Roder testified that he did not remember that § 87(2)(b) requested his, Sgt. Beydoun's, or PO Gheith's shield number. Upon viewing 23:14 minutes through 23:22 minutes of his BWC, PO Roder stated that he still did not remember § 87(2)(b) requesting his shield number. He stated that based on the video footage, it appeared § 87(2)(b) was speaking to Sgt. Beydoun.

Sgt. Beydoun testified that § 87(2)(b) requested each his name and shield number. Sgt. Beydoun, PO Gheith, and PO Roder each provided their name and shield number to § 87(2)(b) personally.

PO Gheith testified that he did not remember if § 87(2)(b) requested his shield number or those of PO Roder or Sgt. Beydoun. Upon reviewing 23:13 minutes to 23:20 minutes of Sgt. Beydoun's BWC, PO Gheith stated he still did not remember if § 87(2)(b) requested his shield number. PO Gheith did not know where he stood when § 87(2)(b) requested that information. PO Gheith did not remember if he provided his shield number.

The second time § 87(2)(b) requested their shield numbers, each officer provided their own shield number. Sgt. Beydoun provided his name to § 87(2)(b) upon request.

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (BR09).
- Sgt. Beydoun has been a member of service for eight years and has been a subject of five other cases and nine other allegations, none of which were substantiated. § 87(2)(g)
- PO Gheith has been a member of service for 14 years, and has been a subject in eight other CCRB cases and 26 other allegations, four of which were substantiated. § 87(2)(g)
 - Case number 201709023 involved allegations of a stop, frisk, search and retaliatory summons.

- Case number 201702427 involved allegations of a stop, strip search, force, discourtesy, refusal to obtain medical treatment, offensive language and threat of arrest.
- PO Roder has been a member of service for 15 years and has been a subject in four other cases, 12 other allegations, one of which was substantiated. § 87(2)(g)
- Case number 201807080 involved allegations of a discourtesy.

Mediation, Civil and Criminal Histories

- § 87(2)(g), § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of February 11, 2020, the NYC Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR12).

Squad No.: 6

Investigator:	Julia Moran Signature	Inv. Julia Moran Print Title & Name	9/21/2020 Date
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Squad Leader: _____	Jessica Peña Signature	IM Jessica Peña Print Title & Name	9/25/2020 Date
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Reviewer:	Signature	Print Title & Name	Date
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